Ex Tempore

TAKASHINGA MINING SYNDICATE
versus
SIMBARASHE NHARUVINGA
and
JOAN MANHANDO
and
MARIPIRA MANHANDO
and
NEWMAN MANHANDO
and
ARTHURNACIOUS PURAZI
and
BRENA PURAZI
and
STEPHEN MUNAKU
and
TAKUNDA MUTIKINYA
and
IBHANESH CHIHURU
and
THE PERMANENT SECRETARY MINISTRY OF MINES AND MINING DEVELOPMENT N.O
and
THE PROVINCIAL MINING DIRECTOR MASHONALAND CENTRAL N.O

HIGH COURT OF ZIMBABWE
DEME J
HARARE; 28 May 2026 and 3 June 2026

Opposed Application

A. Langeveldt, for the Applicant.
Z. W. Makwanya, for the 1st Respondent
No appearance for the 2nd to the 11th Respondents

DEME J: The Applicant approached this court seeking the rescission of judgment. The application was lodged in terms of Rule 29. More particularly, the Applicant seeks the following relief:

1. "The application for rescission of the judgement hereby succeeds.
2. The judgement or order obtained by the 1st respondent in default under case number HCH4513/25 be and is hereby rescinded.
3. Applicant to file its opposing papers within 7 days from the date of this order.
4. Costs to be in the cause."

The matter was opposed by the first Respondent who raised two points *in limine* which were raised on the day of hearing. Firstly, Mr. Makwanya argued that the Applicant failed to attach resolution authorizing the deponent to the founding affidavit. In his second point *in limine*, Mr. Makwanya submitted that the Applicant lacks *locus standi*.

I inquired whether Mr. Langveldt was ready to deal with the fresh points *in limine* which were raised on the day of hearing. Mr. Langveldt indicated his willingness to proceed. On this basis, I allowed the parties to argue the fresh points *in limine*.

Mr. *Makwanya* argued that the deponent to the founding affidavit ought to have demonstrated authority to represent the Applicant. In this regard, Mr. *Makwanya* argued that the application is improperly before the court. Responding to this point *in limine*, Mr. *Langveldt* maintained that there is no need for the syndicate to prepare a resolution authorizing the deponent to the founding affidavit. However, Mr. Langveldt referred to no authorities supporting his submission.

On *locus standi*, Mr. *Makwanya* submitted that the Applicant does not have *locus standi* to sue. He contended that the Applicant is not party to the main matter in case number HCH4513/25 and hence the Applicant lacks *locus standi* in the main matter. Mr. *Makwanya* additionally contended that the Applicant lacks direct and substantial interest in the main matter. He further maintained that the Applicant ought to have approached Ministry of Mines with the complaint rather than approaching the court. Responding to this point *in limine*, Mr. *Langveldt* submitted that the arguments for *locus standi* touch on the merits. Hence, such submissions are unmerited according to Mr. *Langveldt*.

I will deal with the question of *locus standi* as this is more important due to its dispositive nature. I referred Mr. Makwanya to paragraph 17 of the first Respondent's opposing affidavit where the first Respondent made palpable and glaring admissions on having encroached onto Applicant's mining claim. Paragraphs 17-18 of the first Respondent's opposing affidavit are as follows:

> "17. The Letter by the Ministry of Mines of 27 September 2024 indicated that the 1st respondent should adjust his Okello AR mining claim to avoid a partial over-peg of Takashinga Mining Syndicate block, the over pegging is clearly indicated by Annexure G.
>
> 18. The 1st respondent partially abandoned his claim at Okello that was partially over-pegged with Takashinga Mining's Dillion Mine."

Paragraphs 17-18 of the first Respondent's opposing affidavit clearly establish Applicant's direct and substantial interest in the main matter on the face of it. The question of partial abandonment of the Applicant's mining claim cannot be deliberated in the absence of the Applicant. Arguing otherwise is clearly unmerited.

After being referred to Paragraph 17 of the first Respondent's opposing affidavit, Mr. *Makwanya* abandoned the ground for the Applicant's direct and substantial interest in the main matter. Mr. Makwanya alternatively argued that the Applicant was never a party to the main matter and hence lacks *locus standi*. What is apparent from Rule 29 is that the nature of the application does not require one to be part to the main matter for one to seek remedy provided therein. Rule 29 provides that:

> "(1) The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary—
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> (a) an order or judgment erroneously sought or erroneously granted in the absence of any party affected thereby; or
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> (b) an order or judgment in which there is an ambiguity or a patent error or omission, but only to the extent of such ambiguity, error or omission; or
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> (c) an order or judgment granted as a result of a mistake common to the parties.

> (2) Any party desiring any relief under this rule may make a court application on notice to all parties whose interests may be affected by any variation sought, within one month after becoming aware of the existence of the order or judgment.
>
> (3) The court or a judge shall not make any order correcting, rescinding or varying an order of judgment unless satisfied that all parties whose interests may be affected have notice of the order proposed."

On this basis, the ground for lack of *locus standi* argued by the first Respondent's counsel is misplaced. The major complaint by the Applicant is that it was not a party to the main matter. The absence of the Applicant in the main matter is what is contemplated in Rule 29(1)(a).

Mr. *Makwanya* further argued that the Applicant ought to have approached the Ministry of Mines with the complaint of boundary dispute between the first Respondent and the Applicant. In my view, arguing in this manner will assume that this court has no jurisdiction. However, Mr. *Makwanya* clarified that his argument is not on the jurisdiction of this court. He insisted that this court does not have tools to verify the issues of boundary dispute between the Applicant and the first Respondent.

In my view, the main matter made adjustments to the boundary line between the first Respondent's mining claim and the Applicant's mining claim. The Ministry has no powers to rescind the decision of this court in case number HCH4513/25. Only this court and higher courts do have a power to rescind the decision of this court. Thus, solely approaching the Ministry of Mines will not resolve the dispute between the parties. In the main matter, the Ministry of Mines may be called, if necessary, to make the report that will help the court to resolve the main matter.

In the circumstances, the various grounds raised against the Applicant's *locus standi* are baseless. Accordingly, the point *in limine* is hereby dismissed.

On the question of resolution, Mr. *Langveldt's* failed to substantiate his submission that the syndicate's representative does not need to be authorized in order to represent the syndicate. Mr. *Makwanya* argued that the syndicate is a juristic person which cannot act on its own. I agree with this submission. There is need to have proof that the members of the syndicate have authorized the present application. In the case of *Dube* v *PSMAS*[1], the Supreme Court held that:

[1] SC73/19.

> "[37] The High Court decision was appealed to this Court. In a decision reported as *Madzivire & Ors* v *Zvarivadza & Ors* (*supra*), at 515, this Court (per Cheda JA) remarked as follows: -
> "A company, being a separate legal person from its directors, cannot be represented in a legal suit by a person who has not been authorised to do so. This is a well established legal principle, which the courts cannot be ignored. It does not depend on the pleadings by either party. The fact that the person is the managing director of the company does not clothe him with the authority to sue on behalf of the company in the absence of any resolution authorising him to do so. The general rule is that directors of a company can only act validly when assembled at a board meeting. As exception to this rule is where a company has only one director who can perform all judicial acts without holding a full meeting."
>
> [38] The above remarks are clear and unequivocal. A person who represents a legal entity, when challenged, must show that he is duly authorised to represent the entity. His mere claim that by virtue of the position he holds in such an entity he is duly authorised to represent the entity is not sufficient. He must produce a resolution of the board of that entity which confirms that the board is indeed aware of the proceedings and that it has given such a person the authority to act in the stead of the entity. I stress that the need to produce such proof is necessary only in those cases where the authority of the deponent is put in issue. This represents the current state of the law in this country."

In *casu*, the syndicate is a legal entity contemplated in paragraph 38 of the Supreme Court's decision in *Dube* v *PSMAS supra.* On this basis, there is need for the deponent to the founding affidavit to produce evidence that he was authorized by the members of the Applicant to mount the present application.

According to *Dube* v *PSMAS* supra, the legal entity challenged to produce a resolution can produce such a resolution at any time during the proceedings. Mr. *Langveldt* did not seek the indulgence of the court to produce the resolution. The court cannot grant the indulgence in the absence of application. Doing otherwise can only be a misdirection. This will leave me with no option except to uphold the point *in limine*. The application is hanging on nothing in the absence of the resolution authorizing the deponent to the founding affidavit. Hence, it must be struck from the roll.

On the question of costs, costs ordinarily follow the outcome. No submissions have been made to persuade me to have a departure from this established practice. The Applicant must consequently bear the costs on an ordinary scale. Such costs are reasonably sufficient. In the circumstances it is ordered as follows:

A. The point *in limine* that the Applicant lacks *locus standi* be and is hereby dismissed.
B. The point *in limine* that the deponent to the founding affidavit was not authrorised by the Applicant be and is hereby upheld.
C. The application be and is hereby struck from the roll with costs.

DEME J …….....

Gumbo & Associates, Applicant's Legal Practitioners.
Makwanya legal practitioner's, first Respondent's Legal Practitioners